



Seed and Seedlings Terms of Sale and Ordering Process

CAL FIRE Reforestation Services Program, Lewis A. Moran Reforestation Center

The California Department of Forestry and Fire Protection (“**CAL FIRE**”) is responsible for appropriately stewarding the seed and seedling production at the L.A. Moran Reforestation Center (“**Reforestation Center**” or “**LAMRC**”). The Reforestation Center must observe and comply with directives laid out by the Public Resources Code § 4681 and Board of Forestry Policy 0353.1 regarding seed and nursery operations. Given the year-to-year uncertainty in seed collections, the effort required to wild-collect conifer seed, and limited growing space at the nursery, it may not be possible to supply seed and/or seedlings for all projects in the year requested if at all.

Sales Agreement

This Sales Agreement (“**Agreement**”) is made between the Department of Forestry and Fire Protection’s (“**CAL FIRE**”) Reforestation Services Program (“**RSP**” or “**Seller**”) and the buyer of the seeds or seedlings (“**Buyer**”), and outlines the terms and conditions for the sale of goods, specifically seeds and seedlings procured from the L.A. Moran Reforestation Center in Davis, CA.

The Buyer agrees to the following:

1. Terms and Conditions

The seeds or seedlings obtained from RSP cannot be re-sold or planted on any property other than the agreed location. All usage must align with the specified purposes and locations as stated on the order form submitted by Buyer (“**Order Form**”) and adhere to relevant regulations (e.g., Public Resources Code § 4681 and Board of Forestry Policy 0353.1).

Landowner contact information is required for all orders, regardless of whether the order is being placed by the landowner directly, submitted on their behalf, or as part of a bulk order. Planting site location is also required to allow for follow up and monitoring, explained below.

Except for research projects, RSP will only ship seeds directly to an established nursery and not a personal address. Both seed and seedlings are sold strictly for use in California, except for approved research projects. The Buyer is responsible for acquiring their own nursery space and any related nursery communications and fees are not something handled by CAL FIRE. Written confirmation from the nursery that they can grow your order is required prior to order confirmation. A non-exhaustive list of conifer seedling and hardwood nurseries is available on our website or at [this link](#).

2. To Place an Order

RSP reviews all seed/seedling requests received through the online interest form at regular intervals and prioritizes requests based on RSP priorities (explained below).

All Requests:

Requests for seeds and seedlings are to be submitted via the request application on the RSP [webpage](#). RSP reviews all seed and seedling requests received through the online form at regular intervals. **Requests will be evaluated based on our ability to fill the request and by RSP priorities (explained later).** Orders will be matched with seeds from the same seed zone and elevation as the planting site or using the most-suitable alternative according to the [Climate-Adapted Seed Tool](#) developed by UC Davis and the United States Forest Service relative to projected future species migration.

Seed Requests: The seed order form is open from September 1st to December 31st. Sugar Pine, Red Fir and White fir seeds must be ordered by October 31st in the requested year due to longer stratification needs. The deadline for submitting a seed order request may vary depending on the nursery.

Seedling Requests: The seedling order form opens by April 1st and remains open until October 31st or when the RSP nursery has reached projected capacity. Please note, capacity is commonly reached by mid-summer. Prospective customers are encouraged to submit their order early and not wait until the October 31st deadline. This timeframe has been established to accommodate sowing the seedlings in February and April of the year after the form closes and growing them for a minimum of 9-months to become adequately sized seedlings for outplanting. The RSP will grow seedlings at the Reforestation Center to be picked up on site. Seedlings will either be refrigerated or frozen while in storage awaiting pickup. We will also ship seedlings via FedEx if pre-arranged and paid for by the customer.

Review Process: There is no minimum seed or seedling request quantity, however for efficient use of space and labor, requests under 1,000 seedlings may be denied unless a larger request comes in for the same seed lot. Requests are viewed upon receipt to address any follow up needs. A final review by a panel of RSP staff occurs bi-weekly. As such, requestors should allow up to three weeks to render a response from staff on the results of their request. Following review, prospective customers will be contacted via email to indicate if their request is approved or denied. Requests are accepted on a first come, first serve basis and are fulfilled based on the priority matrix below. Should communication attempts seeking follow up information go unanswered for a period of two weeks, the submitted request may be considered cancelled, and the prospective customer will need to submit a new request. Notification of a cancelled order will be provided in writing via email.

First and foremost, RSP will evaluate our ability to fulfill the request based on seeds, space, and labor to fill the request in an economically efficient manner.

Priority for seed and seedling sales will then be based on the following in descending order of priority:

1. Projects intended to reforest land severely disturbed by fire, flooding, pest outbreaks, disease, or other natural events where a Registered Professional Forester (“**RPF**”) has been consulted and a management plan is in place.
2. Restoration of native tree and plant species threatened with extinction, watershed, and riparian protection.
3. Land being reforested as part of a forest management plan (Timber Harvest Plan, Non-Industrial Timber Management Plan, Working Forest Management Plan, etc.) tree farms, biomass plantations, short-rotation forest products.
4. Research and demonstration projects, including medical studies or trials, climate change adaptation and mitigation, public-benefit nursery start-ups, etc.
5. Windbreaks, revegetation of utility and transportation corridors, and other site stabilization

For all priorities listed or for other intended uses, land ownership will be given preference in the following order:

1. Privately-owned non-industrial and tribal lands
2. State, regional, local government, and public lands
3. Federal, privately-owned industrial and other lands

Trees intended for giveaways or public events are not considered due to seed scarcity.

Interested parties are encouraged to consult with local forestry and natural resource professionals to ensure requests include appropriate species selection, planting design, and other relevant reforestation considerations. Contact directories can be provided by RSP staff upon request.

Approved Requests:

If your request is approved, a formal order will be generated with the seed bank (for seeds that will be grown in another nursery) or the nursery (for seedlings grown at LAMRC).

For Seed Orders requests, your approval is contingent on your prior communication with the nursery of your choosing. Your Seed Order application does not constitute a seedling order, as the external nursery of your choosing must determine the weight of seed required to meet your seedling production goals.

Seed Bank or Nursery Staff will generate an invoice and email via DocuSign for the prospective customer to review and sign.

Denied Requests:

Occasionally the RSP is unable to fill a request, either due to a high volume of higher priority requests or a lack of seed. If we are unable to fill your request, we will let you know why. A list of regional nurseries is available on our website.

3. Pricing

Pursuant to PRC § 4684, CAL FIRE's pricing schedule is subject to Board of Forestry ("BOF") consideration and approval, as are any adjustments or amendments that are made to that schedule. Prices below reflect current approved prices by the BOF.

3a. Seed Prices

All seed is sold by weight. Additional species not listed below may be available. Please contact the Seed Bank Manager for more information.

Species	1.000 Pound	Average Seeds/pounds
Coast Redwood	\$832.00	95,364
Giant Sequoia	\$660.00	79,203
Douglas-Fir	\$497.00	30,455
Big Cone Douglas-Fir	\$300.00	4,240
White Fir	\$223.00	10,651
Red Fir	\$205.00	5,113
Incense Cedar	\$420.00	15,137
Bishop Pine	\$257.00	45,004
Coulter Pine	\$257.00	1,365
Gray/Foothill Pine	\$257.00	649
Jeffrey Pine	\$230.00	3,585
Ponderosa Pine	\$230.00	9,240
NSTIA Ponderosa Pine*	\$230.00	7,677
Non-BRR Sugar Pine**	\$334.00	1,794
Western White Pine	\$268.00	13,717
Monterey Pine (New Zealand)	\$376.00	15,622
Monterey Pine (Native)	\$257.00	15,622
Knobcone x Monterey Pine	\$376.00	16,020

* NSTIA is the Northern Sierra Tree Improvement Association, of which CAL FIRE is a founding member.

** BRR refers to the Blister Rust Resistant variety of Sugar Pine

Shipping Prices

Estimated shipping prices shown here are based on the weight of seed shipped. CAL FIRE reserves the right to transfer any extra fees as determined by the shipping company, including but not limited to rural area fees.

Pounds	Estimated Shipping Price
< 3 lbs.	\$20.00
>3-15 lbs.	\$30.00
>15-25 lbs.	\$40.00
>25-35 lbs.	\$50.00
>35 lbs.	\$50.00 plus \$20 per additional 20 lbs.

3b. Seedling Pricing

All seedlings are sold as one-year old plugs. Landowners are encouraged to work with adjacent property owners through local reforestation groups to submit aggregate bulk orders. Orders over 1,000 seedlings are given higher preference and are charged a lesser amount per seedling.

Hardwood Prices

Container Size cubic inches	Seedling Age	Price / seedling
10	1 year	\$1.50
16	1 year	\$2.40
40	1 year	\$3.00
60	1 year	\$4.00

Conifer Prices

Seedling Amount	Price / seedling
1,000 + Seedlings	\$0.50
500-999	\$0.55
Under 500 Seedlings	\$0.60

The Buyer will be charged based on the actual number of seedlings received; if RSP is unable to fill the entire order, the remaining balance owed will be adjusted accordingly while honoring all price per units agreed to in the signed invoice. If RSP can grow more seedlings than originally agreed to in the order, the customer can opt to purchase the additional seedlings at \$0.50/seedling. A list of projected overrun (excess seedlings) will

be available on our website along with the overrun request form, generally beginning mid-January and updated weekly until no more overrun exists.

Payment

Upon order confirmation, RSP will generate an invoice and email via DocuSign for the Buyer to review, approve, complete, and sign electronically. **Payment is made via check and must be made out to “Reforestation Services Program at 5800 Chiles Road, Davis, CA 95618”. Payment must be received within seven (7) business days of the signed DocuSign invoice.** If payment is not received after two weeks from signing the invoice, the order request may be cancelled, and the buyer will need to submit a new request for further consideration.

For seedlings, a 50% deposit is required for all orders. RSP will not reserve bench space in the greenhouse until the deposit is received. The deposit must be received or post-marked within five (5) business days of the signed invoice and will pay for the seedlings in full at time of pick up. The deposit is non-refundable except in the case of crop failure, in which case a refund or store credit will be issued for the seedlings that cannot be delivered. Under no circumstances will RSP’s liability exceed the cost of the deposit.

For seeds, payment is required prior to seed shipment. CAL FIRE will not hold seed orders without payment. Seeds are sold to be used during the current growing season (not to be stored for growing and outplanting in future years as an interim reserve).

A bill of sale (receipt) will be provided to the Buyer.

4. Delivery of Goods

Seeds are shipped via FedEx overnight from Monday-Thursday. It is advised that seeds be kept at 35 degrees Fahrenheit until sown.

Seedlings must be picked up at the Reforestation Center (5800 Chiles Road, Davis, CA 95618), or else shipped at the Buyer’s expense. Seedlings are generally available for pickup between November and May. It may be possible to arrange a pickup outside of these windows with requests to do so evaluated on a case-by-case basis by RSP. Pick up of seedlings shall be scheduled with RSP staff via phone or email with as much notice as possible, understanding that if not given at least five business days’ notice, RSP cannot guarantee seedlings will be ready. RSP will make every effort to make the seedlings available during staff working hours, typically Monday –Friday 8:00am – 3:00 pm. The Buyer should contact the Nursery Manager or our Main Office to schedule seedling pickup.

Please note seedlings are frozen for storage. Allow up to 5 days to thaw before planting. RSP cannot accommodate unscheduled pickups.

The Buyer will be given the opportunity to inspect the seedlings. RSP will not be liable in any way for any delay, non-delivery, or default in pickup/shipment. RSP is not

responsible for goods damaged or lost in transport. The Buyer is responsible for care of reforestation materials after pickup or distribution from the LAMRC.

5. Cancellation

RSP reserves the right to cancel this Agreement:

- a. If the Buyer fails to provide the deposit by the required timeframe.
- b. If the Buyer fails to provide payment for product when due.
- c. If the Buyer fails to sign the Seedling Order Form.

6. Mapping Requirement

To better understand and track where our limited seed and seedling materials are being used, for all approved orders, RSP requires information on the precise location of the supported reforestation project.

Acceptable data formats include an ESRI Shapefile or a Google KMZ/L. Guidance on how to create a polygon using Google Earth is included at the end of this document.

7. Post-Planting Monitoring

To improve efficacy and support of our services, all parties receiving seed and seedlings will be asked to participate in periodic follow up and monitoring of seedlings. Monitoring shall be done at mutually agreed-upon timeframes post-sale. Monitoring activities may include photo monitoring and on-site inspection and sampling. The specific protocol is in development and is subject to change.

- a. A more specific monitoring plan may be developed between involved parties on a case-by-case basis, especially regarding experimental studies, such as climate modeling, or other unique ventures.
- b. Monitoring will be conducted by CAL FIRE staff.
- c. Materials purchased through the RSP with State subsidized funds such as seedlings purchased for California Forest Improvement Program (“**CFIP**”) projects and Forest Health Grants, or where seedling prices have been subsidized through RSP utilizing Federal funds, may already be subject to follow up monitoring implemented through those programs.

8. General Provisions

This Agreement can only be modified in writing, signed by all parties.

This Agreement constitutes the entire Agreement between the parties, and the Buyer acknowledges that it has not relied upon any representations of RSP regarding the prospective performance of the seeds or seedlings but has relied upon its own inspection and investigation.

All intended products, either seeds or seedlings, are to be obtained for the current growing cycle. If products are needed for subsequent years, a new request for that year will be required.

9. Warranties

The seeds and seedlings are sold “as is,” and RSP disclaims all warranties, whether express or implied, including but not limited to, any implied warranty of merchantability or fitness for a particular purpose.

CAL FIRE seed is sold as is. No other/further warranty, expressed or implied, is given. RSP’s Seed Lab is not an officially certified seed testing facility. Results of in-house testing should be used at the purchaser's risk. CAL FIRE disclaims all responsibility and all liability for seeds and seedlings damaged or lost in shipping.

RSP may use the [Climate Adapted Seed Tool \(CAST\)](#) when confirming seed lot suitability for orders, providing the results to and seeking acceptance from a perspective Buyer ahead of a signed agreement for such options. CAST is a climate-adapted seed transfer tool developed by CAL FIRE in collaboration with the United States Forest Service and University of California Davis. The tool uses provenance test sites to estimate the percent decline in productivity as one of the main metrics to assess which alternative seed sources are preadapted to the climates of planting sites. Percent decline in productivity is the percent decline in tree volume or biomass that managers should expect due to using a seed source that is not well adapted to the climate the trees will grow in.

Mapping Requirement Instructions:

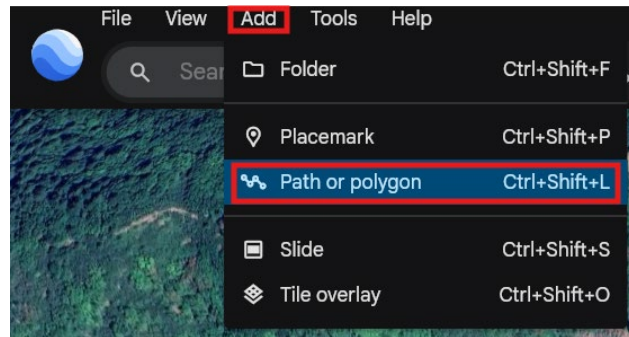
To better understand and track where our limited seed and seedling materials are being used, for all approved orders, RSP requires information on the precise location of the supported reforestation project. Once notification is made to the Buyer of an approved seed or seedling request, the Buyer will be asked to provide a georeferenced polygon of their planting project location.

Acceptable data formats include an ESRI Shapefile or a Google KMZ/L. The process described below details how to create a polygon in Google Earth for those who do not have access to GIS software. The process is simple and requires only a web browser.

1. Navigate to Google Earth in your favorite web browser by going to <http://earth.google.com>

2. You can search for your planting site by typing an address or coordinates into the search bar, or by zooming in on the map to your planting site location.

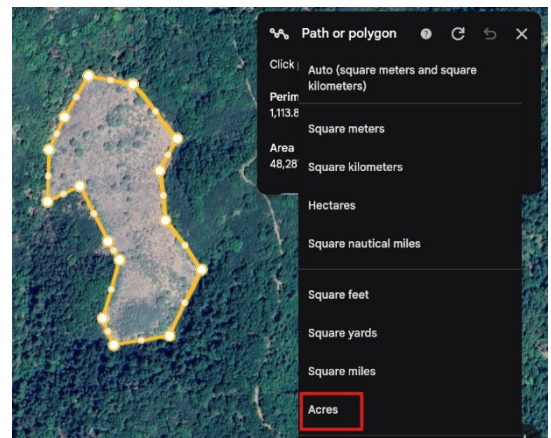
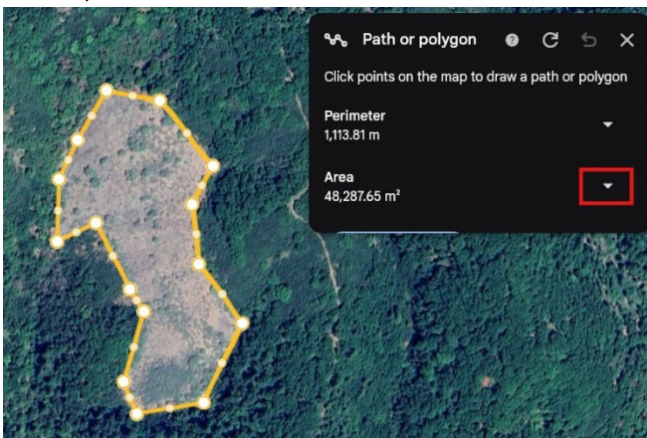
3. Click on the “Add” menu from the top toolbar and select “Path or polygon”



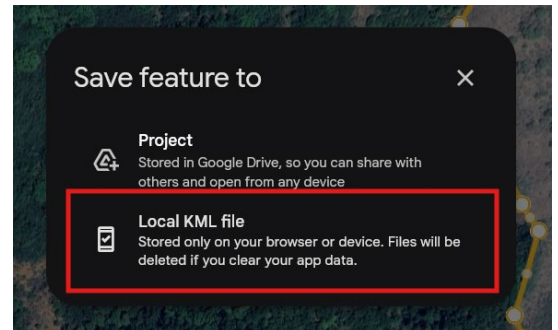
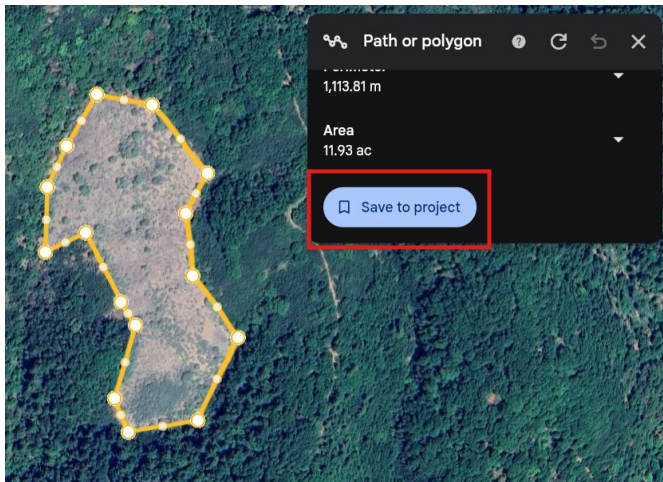
4. Click along the boundary of your planting area. Points will appear as you click. To complete the polygon, make your LAST click the first point you created. You'll see a small text box that reads “Close shape”, indicating this will create a polygon.



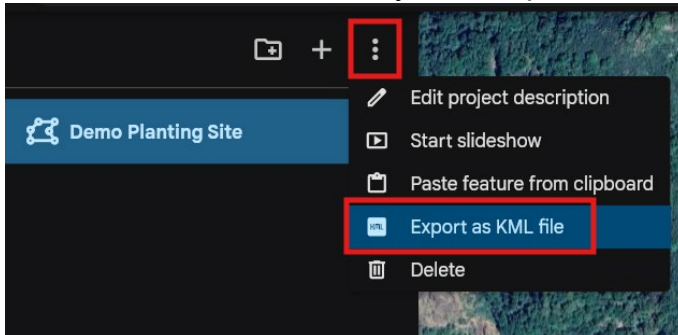
5. In the embedded window in Google Earth, you will see an area calculation. You can change the units from squared meters to acres by selecting the drop down menu, then “Acres”.



6. To export your polygon, scroll down in the popup window with the area calculation, select “Save to project”, then “Local KML file”.



7. You will be prompted to give your polygon a unique title, which we recommend. Once complete, select “Export as KML file” from the left-hand menu and save it to a convenient location on your computer.



Attached this KML file to your confirmation email from seed bank or nursery staff.